THE PHONE MAST ADVICE COMPANY

The Ultimate Phone Mast Landlord's Handbook

Essential Tips for Success

VERSION 2 | UPDATED MAY 2026

A comprehensive guide for UK landlords, fully updated for the **Product Security and Telecommunications Infrastructure Act 2022**, the landmark *Vache Farm* Upper Tribunal decision (July 2024), and the 7 April 2026 changes to the Code valuation regime.

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Foreword to Version 2

This is the second edition of *The Ultimate Phone Mast Landlord's Handbook*, fully updated in May 2026 to reflect the most significant developments in UK telecommunications law and the wider phone mast landscape since the first edition was published in June 2024.

In the intervening period, several developments have fundamentally reshaped the position of UK phone mast landlords:

- The **Product Security and Telecommunications Infrastructure Act 2022 (PSTI Act)** has continued to take effect in stages, with the **mandatory duty on operators to consider Alternative Dispute Resolution** becoming operative on 7 November 2023.
- The **Upper Tribunal (Lands Chamber) decision in *EE Ltd & Hutchison 3G UK Ltd v AP Wireless II (UK) Ltd* (the "Vache Farm" case)** in July 2024 was a watershed moment for rural landlords: the Tribunal more than doubled the previous tonal rent for unexceptional rural greenfield sites, setting it at **£1,750 per annum**.
- The **Vodafone–Three merger** completed in June 2025, reducing the UK from four to three mobile network operators (MNOs).
- Further provisions of the PSTI Act 2022 — **Sections 61 to 64** — come into force on **7 April 2026**, harmonising the rent and compensation regime for **Landlord and Tenant Act 1954 renewals** with the Electronic Communications Code "no-scheme" valuation. This closes a long-standing loophole that had, until now, allowed some renewals to be assessed on a more landlord-favourable basis.

This second edition incorporates the legislation, case law, and market context that landlords need to navigate the current environment. All terminology has been brought into line with current UK English standards, and every chapter has been reviewed for factual accuracy by our specialist surveyors.

— The Phone Mast Advice Company, May 2026

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Chapter 1 — Understanding the Phone Mast Industry

Welcome to the first chapter of *The Ultimate Phone Mast Landlord's Handbook: Essential Tips for Success*. In this chapter, we look at the structure of the phone mast industry so that you have a solid foundation for the chapters that follow.

Overview of the Telecommunications Industry

The telecommunications industry plays a central role in connecting people and businesses. At the heart of this industry are phone mast landlords, who provide the essential infrastructure on which wireless communication depends. Understanding the wider context will help you grasp the significance of your role as a landlord and the impact your sites have on modern UK life.

The UK Mobile Operator Landscape in 2026

Following the completion of the **Vodafone–Three merger in June 2025**, the UK now has three mobile network operators (MNOs):

- **VodafoneThree** (the merged entity, with Vodafone holding 51% and CK Hutchison 49%);
- **EE**, part of the BT Group;
- **Virgin Media O2 (VMO2)**.

In addition, two **network-sharing joint ventures** continue to manage a large proportion of the shared mast estate:

- **Cornerstone Telecommunications Infrastructure Ltd (CTIL)** — the joint venture historically used by Vodafone and O2. *Cornerstone* and *CTIL* are the same company: "CTIL" is the legal name and "Cornerstone" is the brand;
- **Mobile Broadband Network Ltd (MBNL)** — the joint venture used by EE and Three. Following the Vodafone–Three merger, Three is expected to migrate out of MBNL into the CTIL arrangement over the coming years, although the underlying agreement does not expire until 2031.

The UK's two main **independent tower companies** are:

- **On Tower UK** (formerly Arqiva) — Arqiva's mobile tower business was sold to Cellnex in 2020 and now trades as On Tower;
- **Cellnex** — a pan-European tower operator and the owner of On Tower UK.

Types of Phone Mast Installations

Phone masts come in several forms, including rooftop installations, ground-based towers (also known as stand-alone or greenfield masts), and specialised structures such as monopoles, lattice towers, and street-works installations for small-cell deployment. Each type serves a distinct purpose and presents different opportunities and challenges for landlords. By familiarising yourself with the different installation types, you will be better placed to assess the suitability of your property and to negotiate from a position of knowledge.

Trends and Developments Shaping the Future

The telecommunications landscape is constantly evolving, driven by technological change and consumer demand. As a phone mast landlord, staying informed about industry trends is essential. The continuing roll-out of **5G**, the very early-stage work on **6G research**, the growth of the **Internet of Things (IoT)**, and the steady **fixed-line fibre roll-out** all influence the demand for mast sites and the negotiating dynamic between operators and landowners.

Whether you are a seasoned landlord looking to expand your portfolio or a newcomer exploring the possibilities of phone mast leasing, this guide lays the groundwork for your journey. By gaining a deeper understanding of the industry, you will be better equipped to make informed decisions and capitalise on the opportunities available.

Chapter 2 — The Electronic Communications Code and the PSTI Act 2022

To navigate the complexities of phone mast leases effectively, you need to understand the legal framework that governs them. The **Electronic Communications Code** ("the Code") is a critical piece of legislation that materially affects landlords and telecom operators in the UK. This chapter explains the Code, the most important reforms made to it by the **Product Security and Telecommunications Infrastructure Act 2022 (PSTI Act)**, and what these provisions mean for you in practice.

Purpose and Scope of the Code

The Electronic Communications Code is set out at **Schedule 3A to the Communications Act 2003**, having been substantially rewritten by the **Digital Economy Act 2017**. It was designed to facilitate the roll-out and maintenance of digital communications infrastructure across the UK. The Code grants telecom operators extensive rights to install and maintain electronic communications apparatus on public and private land. Its primary aim is to support the expansion of mobile and broadband networks, ensuring widespread and reliable digital connectivity.

Key Provisions of the Code

1. Rights of Operators. Under the Code, operators have significant rights to access land for the installation and maintenance of telecom equipment. These rights, known as "Code rights", include the ability to:

- install and maintain electronic communications apparatus;
- carry out works to facilitate the installation, maintenance, adjustment, repair, or alteration of the apparatus;
- keep apparatus on, under, or over land;
- enter land to inspect, maintain, or upgrade the apparatus.

2. Imposition of Agreements. The Code allows operators to apply to the **Upper Tribunal (Lands Chamber)** to impose an agreement if a landowner refuses to grant access. If negotiations fail, an operator can therefore seek the Tribunal's intervention to compel rights.

3. Valuation and Compensation. The Code changes the way rents are assessed for telecom sites. Traditionally, rents were based on the open-market value of the land. Under the Code, rents are calculated on the **"no-scheme" basis** — assessed as if the site were not being used for telecommunications. This often produces a materially lower figure than the historic market rent. The Tribunal has, however, repeatedly shown willingness to use **non-telecoms comparable evidence** to set a sensible tonal rent (see Chapter 4 on the *Vache Farm* decision).

4. Termination and Renewal of Agreements. The Code sets out specific procedures for terminating and renewing agreements. Landlords must follow these procedures carefully to avoid unintentionally allowing automatic continuation on potentially less favourable terms. Termination notices must be served on the available statutory grounds — for example, redevelopment of the site or persistent breach by the operator.

5. Dispute Resolution. Disputes between landlords and operators regarding the granting, renewal, or termination of Code rights are resolved by the **Upper Tribunal (Lands Chamber)**. This provides a formal legal avenue for resolving conflicts, although it can be time-consuming and costly — which is one of the reasons Parliament has now made **Alternative Dispute Resolution (ADR) a mandatory consideration** before applications to the Tribunal (see below).

The PSTI Act 2022 — What Has Already Changed

The **Product Security and Telecommunications Infrastructure Act 2022** received Royal Assent on 6 December 2022 and has been brought into force in stages by a series of commencement regulations. The most important changes for landlords are:

- **Sections 57 and 60** (in force from 7 February 2023) and **Sections 58 and 59** (in force from 17 April 2023) — procedural reforms to the way Code rights are sought and resisted.
- **Section 66** (in force from 26 April 2023) — relating to interim and temporary Code rights.
- **Sections 68 and 69** (in force from 7 November 2023) — most importantly:

- **Section 68** introduces interim arrangements pending the determination of Code rights, providing greater certainty for both sides while negotiations or tribunal proceedings are ongoing; - **Section 69** imposes a **statutory duty on operators to consider Alternative Dispute Resolution (ADR)** before applying to the Tribunal. Operators must include information about ADR when serving certain notices, and the Tribunal must take into account any unreasonable refusal to engage in ADR when assessing costs.

- The remaining Part 1 provisions came into force on 29 April 2024.

The PSTI Act 2022 — What Changes on 7 April 2026

The fourth set of commencement regulations brings **Sections 61 to 64 of the PSTI Act 2022 into force on 7 April 2026**. This is the single most significant change for landlords in 2026.

In short, these provisions **harmonise the rent and compensation payable on a Landlord and Tenant Act 1954 renewal** with the rent and compensation regime under the Code. Until now, certain telecoms tenancies whose renewal fell under Part 2 of the Landlord and Tenant Act 1954 — typically older, pre-2017 leases — could be renewed on more landlord-favourable open-market terms. From 7 April 2026, those renewals will be valued on the same **"no-scheme"** basis as a Code agreement.

Important transitional protection. The new provisions **do not apply to "Live Tenancies"** — tenancies which had already reached or passed the date on which a section 25 or section 26 notice could be served. For those tenancies, the existing 1954 Act regime continues to apply. The new provisions do, however, apply to renewals where notice is served before 7 April 2026 if the date specified in the notice falls on or after that date.

If you have a phone mast lease that was granted before December 2017, or that has been treated as a 1954 Act business tenancy, **you should take specialist advice now, before April 2026**, to understand which regime applies and whether there is action you can take ahead of the change.

Implications for Landlords

The combined effect of the Code and the PSTI Act has been to shift the balance of bargaining power towards operators. Reduced rental income, broad statutory rights, and the prospect of compelled renewal on Code terms place landlords in a more challenging position than they were in before December 2017. That said, the picture is not entirely one-sided:

- **The *Vache Farm* decision** (July 2024) demonstrated that the Tribunal is prepared to set materially higher tonal rents where the evidence supports it.
- The **ADR duty** gives landlords a meaningful cost-protection tool: operators who refuse to engage in good-faith ADR can expect to be penalised on costs.
- The Tribunal has continued to grant landlords appropriate **redevelopment break rights** in new leases.

Understanding these provisions, engaging professional advice early, and being ready to negotiate from a position of evidence — rather than emotion — remains the most effective approach.

Chapter 3 — Maximising Rental Income

In the current regulatory environment, maximising rental income from phone mast sites is more challenging than it once was, but it is far from impossible. Historically, landlords could enhance their revenue through **site-sharing** and **assignment** opportunities. These strategies allowed multiple operators to use the same mast or facilitated the transfer of lease rights, generating additional income streams for landlords. The Code has fundamentally altered those dynamics, but recent case law and the imminent April 2026 changes mean the picture is more nuanced than it appears.

The Impact of the Code on Revenue Strategies

The Code, aimed at simplifying and accelerating the deployment of telecom infrastructure, has introduced significant changes that affect how landlords can generate income. The most notable shifts concern site sharing and assignments.

Site Sharing

Previously, landlords could negotiate fees for allowing multiple operators to share the same site. Under the Code, telecom operators may **share sites without the landlord's explicit consent and without the need to pay additional "pay-away" fees** to the landlord. This was reinforced by the Upper Tribunal's 2025 decision in **On Tower UK Ltd v AP Wireless II (UK) Ltd** (the "Ewefields" case), which confirmed that landowners are not entitled to additional pay-away payments triggered by site sharing.

In practical terms, this removes a revenue stream that landlords once relied on. However, sharing remains a material consideration when negotiating other commercial terms, including initial rent, lease length, and break rights.

Assignments

Similarly, the Code allows **assignments to occur without the landlord's consent** where the assignee is another telecoms operator. This streamlines the operators' commercial flexibility but, again, removes a historic source of income for landlords.

Focusing on Lease Negotiations

Given these constraints, landlords must place greater emphasis on negotiating favourable terms **at the outset**. The following strategies remain the most effective:

1. **Understand market rates.** Research current tonal rents for telecom sites in your area. Following *Vache Farm* (July 2024), the standard tonal rent for unexceptional rural greenfield sites was set at **£1,750 per annum** — substantially above the £750 per annum that had previously been treated as standard. Knowing the up-to-date benchmark strengthens your negotiating position.
2. **Highlight property benefits.** Emphasise any unique benefits your property offers — prime location, ease of access, existing infrastructure, security, or alternative-use value. These factors can justify rents above the tonal figure.
3. **Incorporate future-proof terms.** Ensure the lease includes provisions that accommodate future technological and market changes. This typically involves clauses for periodic rent reviews indexed to RPI or CPI, and clear arrangements for upgrades and additional equipment.
4. **Leverage non-financial terms.** Where direct financial gains are limited by the Code, you can still negotiate non-financial terms that add value: site-condition obligations, removal and reinstatement obligations, timing of access, restrictions on noise and visual impact, and protections for the wider farm or estate.
5. **Build in a redevelopment break right.** The Tribunal has consistently recognised landlords' legitimate interest in being able to redevelop, and has approved **18-month redevelopment break clauses** in new leases on the fifth or any subsequent anniversary of the term.
6. **Seek specialist advice.** Engage professionals who specialise in telecoms leases. Their expertise can help you navigate the Code, the PSTI Act, and recent case law, and ensure that your lease agreement is robust and reflects current best practice.

Maximising rental income in the current environment requires a strategic, evidence-led approach focused on the initial lease negotiation and the renewal cycle. By understanding the market, emphasising your property's strengths, incorporating future-proof terms, and seeking specialist advice, you can continue to achieve worthwhile outcomes in the phone mast leasing market.

Chapter 4 — Legal Considerations, Recent Case Law, and Risk Management

Managing phone mast sites involves a complex web of legal considerations. As a landlord, you need to ensure that your lease agreements are carefully drafted to protect your interests, address liability issues, comply with regulatory requirements, and reflect the latest case law. This chapter looks at the key legal provisions to include in a phone mast lease, the most important recent decisions of the Upper Tribunal and Court of Appeal, and the practical steps you can take to manage risk.

Key Legal Provisions to Include in Phone Mast Lease Agreements

1. **Term and renewal options.** Clearly define the lease term and any options for renewal. Specify the conditions under which the lease can be extended or terminated and outline the process for negotiating renewals — including how the April 2026 changes will apply to any 1954 Act renewals.
2. **Rent and payment terms.** Detail the rent amount, payment schedule, and any provisions for rent reviews. Periodic reviews indexed to RPI or CPI remain the most defensible mechanism.
3. **Permitted use and restrictions.** Define the permitted use of the site and any restrictions on the type and scope of equipment that can be installed, including any restrictions on alterations or modifications.
4. **Maintenance and repairs.** Specify responsibilities for maintenance and repairs of the mast and associated equipment, including the procedures for regular inspections, repairs, and upgrades.
5. **Access rights.** Grant the operator the necessary access rights, with provisions for emergency access and any limitations on access times or conditions. Notice provisions should be reasonable but enforceable.
6. **Indemnification and liability.** Include indemnification clauses to protect the landlord from claims arising from the operator's use of the site. Clearly outline the operator's liability for damages or injuries related to the installation and operation of the mast.
7. **Insurance requirements.** Require the operator to maintain adequate insurance cover, including public liability, property damage, and business interruption insurance. Specify the types and minimum amounts of cover required and include a clause for providing proof of insurance on request.

8. **Redevelopment break right.** Following the *Vache Farm* decision, an 18-month redevelopment break clause exercisable on the fifth or any subsequent anniversary of the term has become a well-established feature of Code-compliant leases.

Recent Case Law That Landlords Need to Know

The Code is a relatively young piece of legislation in its post-2017 form, and the case law is still developing. The following decisions are the most important for landlords to understand.

EE Ltd & Hutchison 3G UK Ltd v AP Wireless II (UK) Ltd (Vache Farm) [2024] UKUT 124 (LC) — July 2024. The Upper Tribunal (Lands Chamber) increased the tonal rent for an unexceptional rural greenfield mast site at Vache Farm in Buckinghamshire from £750 per annum to **£1,750 per annum** — a rise of more than 130%. The Tribunal explicitly took into account inflation and non-telecoms comparable evidence, building on the analytical approach long advocated by specialist surveyors. The decision is the most important rural-site rent decision since the post-2017 Code came into force.

Cornerstone Telecommunications Infrastructure Ltd v Compton Beauchamp Estates Ltd [2022] UKSC 18 — Supreme Court. The Supreme Court confirmed that an operator cannot use the Code to impose an agreement on a landowner who is not the "occupier" of the site. In *Compton Beauchamp*, Vodafone was already in occupation under an expired lease, and the Supreme Court therefore held that the landowner alone could not grant Code rights to CTIL without Vodafone being party to the proceedings. **The Phone Mast Advice Company instigated and advised on this case**, and it remains foundational reading for any landlord whose site is already occupied by another operator's apparatus.

AP Wireless II (UK) Ltd v On Tower (UK) Ltd [2025] EWCA Civ 971 — Court of Appeal, July 2025. The Court of Appeal clarified the long-running question of whether a "minimum term" property agreement creates a valid **lease** or a **contractual licence**. This is important because the route to renewal — and the rent valuation regime — differs significantly between the two. Landlords with older agreements should take advice on how this decision affects their position.

On Tower UK Ltd v AP Wireless II (UK) Ltd (Ewefields) [2025] LC-2024-739. The Upper Tribunal confirmed that landowners cannot receive additional "pay-away" payments when an operator exercises its statutory site-sharing rights under the Code. This case definitively closes the door on pay-away as a revenue stream.

Understanding Liability Issues, Insurance Requirements, and Indemnification Clauses

1. **Liability issues.** Liability can arise from various sources, including accidents, equipment failures, or interference with other properties. It is essential to define the responsibilities of both parties in the lease agreement to minimise potential disputes.
2. **Insurance requirements.** Comprehensive insurance is vital to protect both landlord and operator. The lease should require the operator to carry sufficient cover, including:

- **Public liability insurance** — to cover claims for bodily injury or property damage caused by the mast or its operation; - **Property insurance** — to cover damage to the mast, equipment, and any associated structures; - **Business interruption insurance** — to cover lost income if mast operation is disrupted.

1. **Indemnification clauses.** These clauses protect the landlord by requiring the operator to indemnify the landlord for any losses, damages, or legal costs incurred as a result of the operator's activities on the site. The clause should clearly define:

- **Scope of indemnity** — the specific activities or risks covered; - **Exclusions** — any limitations or carve-outs; - **Procedures** — how indemnity claims are notified and resolved.

Navigating Regulatory Compliance and Planning Regulations

1. **Regulatory compliance.** The lease should oblige the operator to comply with all applicable laws, regulations, and industry standards, including obtaining and maintaining the necessary permits and licences.
2. **Planning regulations.** Planning regimes vary by location and significantly affect the installation and operation of phone masts. Key considerations include:

- **Planning approvals** — the operator should be responsible for obtaining all necessary planning permission and prior approval. - **Land use restrictions** — local plans, height restrictions, setback requirements, and aesthetic considerations may all be relevant. - **Community engagement** — the operator is responsible for community engagement and consultation to address opposition to the installation. A direct contact within the operator's team for forwarding public concerns is good practice and helps maintain transparency.

1. **The Telecommunications Infrastructure (Leasehold Property) Act 2021.** This Act, which received Royal Assent on 15 March 2021, provides operators with

a statutory route to gain interim Code rights to **multi-dwelling buildings** (such as blocks of flats) where the landlord has failed to respond to access requests on behalf of a tenant. After serving warning and final notices, the operator can apply to the Upper Tribunal for an order imposing interim Code rights for a maximum of 18 months. Landlords of multi-dwelling buildings should ensure they have a clear process for responding to operator requests so that this route is not triggered against them.

Navigating the legal landscape of phone mast leasing requires careful attention to detail and an up-to-date understanding of both legislation and case law. By incorporating robust legal provisions, understanding liability and insurance requirements, ensuring compliance with planning regulations, and keeping pace with recent decisions, landlords can effectively manage risks and protect their interests.

Chapter 5 — Property Maintenance and Management

Effective property maintenance and management are critical to ensuring the safety, functionality, and profitability of phone mast sites. This chapter covers best practice for maintaining and inspecting phone mast sites, establishing communication protocols with telecom operators and service providers, and implementing preventive maintenance to minimise downtime and protect revenue.

Best Practices for Maintaining and Inspecting Phone Mast Sites

1. **Regular inspections.** Conduct regular inspections to assess the condition of the mast and associated equipment. Schedule these inspections at least annually, and more frequently if the site's location or environmental conditions warrant. Look for signs of wear and tear, structural damage, and any issues that could affect functionality.
2. **Safety checks.** Ensure all safety protocols are followed during inspections — checking for loose or corroded connections, verifying the integrity of safety barriers and fencing, and confirming that all warning signs are visible and legible. Safety checks are vital to prevent accidents and ensure compliance with UK health and safety regulations.
3. **Environmental considerations.** Monitor the site for environmental issues such as vegetation overgrowth, which can obstruct equipment, or erosion that might affect the mast's foundation. Clear any debris regularly and ensure proper drainage to prevent water damage.
4. **Documentation.** Keep detailed records of all inspections and maintenance activities. Documenting the condition of the site, the repairs carried out, and the planned future maintenance helps in tracking the site's upkeep and can be crucial in resolving disputes or claims.

Establishing Communication Protocols with Telecom Operators and Service Providers

1. **Clear communication channels.** Establish clear communication channels with your operator and any sub-contracted service providers. Designate points of contact and ensure all parties know who to reach for routine maintenance, emergencies, or lease-related enquiries.

2. **Regular updates.** Schedule regular updates with your operator to discuss site conditions, upcoming maintenance, or any issues that might affect the operation of the mast. These updates can be done through meetings, calls, or written reports.
3. **Emergency protocols.** Develop and communicate emergency protocols. Ensure that both you and the operator understand the procedures to follow in case of equipment failure, severe weather, or security incidents. These protocols should include emergency contact numbers and steps to mitigate risks and damage.
4. **Feedback mechanisms.** Implement feedback mechanisms to allow operators to report issues and suggest improvements. Addressing concerns promptly helps maintain positive relationships and ensures the site operates smoothly.

Implementing Preventive Maintenance Measures

1. **Scheduled maintenance.** Establish a preventive maintenance schedule to address potential issues before they become significant problems. This includes routine checks of mechanical and electrical components, software updates for any digital equipment, and structural assessments of the mast itself.
2. **Upgrade planning.** Plan for regular upgrades to equipment and infrastructure. Telecoms technology evolves rapidly, and staying current with the latest advancements can improve site performance — although note that under the Code and the PSTI Act, operators have significant statutory rights to upgrade and share apparatus without additional payment.
3. **Risk management.** Identify and manage risks associated with the site. This may involve reinforcing structures against extreme weather, implementing security measures to deter vandalism or theft, and ensuring backup arrangements are in place for power outages.
4. **Cost management.** Preventive maintenance incurs costs, but it is normally more cost-effective in the long run than reactive repairs. Budget for regular maintenance and create a reserve to cover unexpected repairs or upgrades.

Effective property maintenance and management are essential to the successful operation of phone mast sites. By implementing regular inspections, establishing clear communication protocols, and adopting preventive maintenance measures, landlords can ensure their sites remain safe, functional, and profitable.

Chapter 6 — Tenant Relations and Conflict Resolution

The Electronic Communications Code has shifted the balance of power significantly in favour of operators, often leading to lower rents and increased frustration for landlords. While this legal framework can create tension, it is important to manage operator relations effectively. Fostering positive working relationships with operators and addressing disputes professionally can lead to better outcomes — and, since the introduction of the ADR duty in November 2023, can also lead to better cost protection if matters do escalate.

Building Positive Relationships with Telecom Operators

1. **Open communication.** Maintain transparent communication channels with your operator. Even where the rent is lower than you would like, keeping the operator informed about site conditions, maintenance schedules, and any changes helps build trust. Regular contact, whether by email, telephone, or in person, ensures both parties are aligned.
2. **Responsive service.** Address operator enquiries and concerns promptly and professionally. A proactive and responsive approach to service issues demonstrates a commitment to maintaining a good working relationship, even where the underlying commercial position is difficult.
3. **Professionalism and fairness.** Always maintain a professional demeanour. Treat the operator fairly and adhere to the terms of the lease, even when frustrations arise. Professionalism fosters respect and helps to mitigate the impact of any legal constraints imposed by the Code.
4. **Feedback mechanisms.** Implement systems for operators to provide feedback. Regular surveys or structured feedback can help you understand operator needs and address issues before they escalate.

Handling Disputes, Complaints, and Lease Violations

1. **Clear lease terms.** Ensure that lease agreements are clear, comprehensive, and Code-compliant. Clearly defined terms and conditions can prevent misunderstandings and provide a solid foundation for resolving disputes.
2. **Structured dispute resolution.** Establish formal mechanisms for dispute resolution, such as mediation or arbitration clauses. Following the PSTI Act 2022, operators have a **statutory duty to consider Alternative Dispute Resolution**

before applying to the Tribunal, and the Tribunal must take any unreasonable refusal to engage in ADR into account when assessing costs. This gives landlords a meaningful tool to insist on structured, lower-cost dispute resolution.

3. **Documentation and record-keeping.** Keep detailed records of all interactions, complaints, disputes, and resolutions. Documentation is essential for tracking issues, demonstrating your efforts to address concerns, and providing evidence if legal action becomes necessary.

4. **Addressing lease violations.** Handle lease violations consistently and according to the terms of the lease. Clearly communicate the nature of the violation, the required remedy, and the consequences of non-compliance.

Strategies for Fostering Long-Term Operator Retention

1. **Competitive and fair practices.** Offering competitive and fair practices in areas beyond rent — such as quick response times and well-maintained access — can encourage long-term tenancy.

2. **Quality maintenance and upgrades.** A well-maintained site not only ensures compliance with safety regulations but also enhances operator satisfaction.

3. **Operator incentives.** Consider non-monetary incentives to encourage long-term leases or renewals — enhanced services, improved site amenities, or flexibility in lease terms.

4. **Relationship building.** Develop strong, professional relationships with the operator's local team and site managers. Demonstrating commitment to meeting their reasonable needs builds goodwill and can be valuable when issues arise.

Navigating operator relations under the Code can be challenging, but adopting effective strategies for communication, dispute resolution, and retention can lead to long-term benefits. Despite the legal constraints, maintaining a professional and proactive approach is crucial.

Chapter 7 — Future Trends and the April 2026 Changes

The telecommunications industry is evolving rapidly, and the legal framework under the Electronic Communications Code continues to develop. The roll-out of 5G is well advanced, the early-stage exploration of 6G is under way, and the **April 2026 PSTI Act commencement** will close the most significant remaining loophole in the rent regime. This chapter looks at what landlords need to know about the legal landscape, the technological trends shaping the industry, and how to prepare strategically for what comes next.

Current Legal Landscape and Its Impact on Landlords

1. **Challenges under the Code.** The Code has reduced rental income for landlords and strengthened the rights of operators, making it less attractive for landlords to enter new agreements voluntarily. This shift has caused frustration and a reluctance among some landlords to engage at all.
2. **The April 2026 commencement.** From 7 April 2026, Sections 61 to 64 of the PSTI Act 2022 come into force and bring **Landlord and Tenant Act 1954 renewals into the same "no-scheme" valuation regime as Code agreements**. Until that date, certain older tenancies could still be renewed on more landlord-favourable open-market terms. Live tenancies — those where a section 25 or section 26 notice could already be served — are protected by transitional provisions. If you have a phone mast lease that pre-dates the Code, you should take advice well before April 2026.
3. **Recent positive case law.** The *Vache Farm* decision (July 2024) demonstrated that tonal rents can rise materially where the evidence supports it. The Court of Appeal's 2025 decision in *AP Wireless v On Tower* has clarified important lease/licence questions.

Importance of Staying Informed

1. **Industry developments.** The telecommunications industry is continuously evolving, with significant developments such as advanced 5G deployment, the early stages of 6G research, the growth of the **Internet of Things (IoT)**, and the **post-merger consolidation of UK mobile operators** following the Vodafone–Three merger. Staying informed about these developments helps landlords anticipate changes that may affect their properties and leases.

2. **Continuing legal developments.** The Code, the PSTI Act, the Telecommunications Infrastructure (Leasehold Property) Act 2021, and the body of Upper Tribunal and Court of Appeal case law continue to evolve. Keeping abreast of legal developments and industry lobbying is essential.

Preparing for Future Opportunities

1. **Monitoring technological advances.** Technologies such as 5G, the early-stage 6G research programmes, and IoT require extensive infrastructure, which may, over time, increase the demand for mast sites. Landlords should stay informed and be prepared to take advantage of new opportunities.
2. **Engaging with industry developments.** Participating in industry forums, attending conferences, and subscribing to telecoms updates can help landlords stay informed about trends and potential legislative change.

Future-Proofing and Strategic Planning

1. **Lease provisions for future change.** When negotiating new leases, consider including clauses that allow for rent reviews indexed to RPI or CPI, and provisions that anticipate further changes to the Code.
2. **Exploring non-traditional uses.** Consider alternative uses for your property that may complement telecoms infrastructure — for example, renewable energy projects such as solar arrays or small-scale wind. These not only diversify income but also strengthen the alternative-use evidence base for any future rent valuation exercise.
3. **Positioning for legislative change.** Stay engaged with industry associations and advocacy groups. The PSTI Act demonstrates that Parliament is willing to revisit the regime, although recent reforms have, on balance, gone further in operators' favour. Being part of a collective voice remains worthwhile.
4. **Diversifying income streams.** Explore ways to generate income from your property that are not solely dependent on telecoms leases — renewable energy projects, agricultural diversification, commercial leases, or other uses of the land that provide additional revenue while you wait for more favourable conditions in the telecoms sector.

While the current legal framework poses real challenges for phone mast landlords, the picture is not static. The April 2026 changes will affect some landlords adversely, but recent case law has begun to push tonal rents in a more landlord-friendly direction. By keeping informed, engaging with developments, and planning strategically, landlords can continue to extract value from their sites.

Chapter 8 — The Risk of Signing Before Thinking

Navigating the legal landscape of phone mast agreements requires careful consideration and a clear understanding of the rights and obligations involved. Landlords often face complex decisions when approached by operators, and rushing into agreements without adequate knowledge can lead to significant financial and legal consequences. This chapter highlights the risks of signing agreements hastily and provides guidance on how to approach these decisions prudently.

Understanding the Legal Landscape

The Electronic Communications Code grants operators extensive rights, often placing landlords at a disadvantage. Many landlords feel pressured to accept initial offers, believing they have little choice. This can result in less favourable terms and reduced rental income. Some landlords mistakenly assume that rejecting or ignoring an operator's offer is a viable strategy. However, the Code allows operators to seek the Tribunal's intervention, potentially leading to imposed terms that are even less favourable — although the PSTI Act 2022's ADR duty has, since November 2023, given landlords additional protection by requiring operators to consider mediation or other forms of dispute resolution before applying to the Tribunal.

Risks of Hasty Agreements

Accepting initial offers without negotiation can lock landlords into long-term, sub-optimal arrangements. Initial offers may include clauses that heavily favour the operator, such as unrestricted access rights, broad upgrade rights, and limited maintenance obligations. These terms can lead to ongoing disputes and operational challenges.

Some landlords choose to ignore communications from operators, hoping the issue will resolve itself. This is rarely a good strategy — operators can and do apply to the Tribunal, and the resulting imposed terms are typically less favourable than a negotiated outcome.

Equally, reacting by demanding immediate removal of existing apparatus or by refusing all engagement can provoke unnecessary legal proceedings.

Best Practices for Landlords

- **Seek specialist advice early.** Consult a specialist telecoms surveyor or solicitor with expertise in telecommunications before responding to any operator communication. Specialist advice clarifies your rights and obligations and supports informed decision-making.
- **Negotiate from evidence.** Thoughtful, evidence-led negotiation produces more balanced agreements than reactive ones. The *Vache Farm* decision provides up-to-date tonal evidence; non-telecoms comparables can support a higher rent where the local market justifies it.
- **Engage with ADR.** Since November 2023, operators are statutorily required to consider ADR before applying to the Tribunal. Where you have a genuine dispute, engaging constructively with ADR strengthens your position on costs if matters do escalate.
- **Keep detailed records.** Documenting offers, counter-offers, and discussions is crucial in the event of disputes and potential legal action.
- **Stay informed.** Regularly update your knowledge of telecoms law and industry practice. Staying informed about legal changes and case law helps landlords anticipate and adapt.

By staying informed and prepared, landlords can navigate the complexities of the telecommunications industry and protect their interests effectively.

Chapter 9 — What's Next

As you conclude this guide, you now have a solid foundation for navigating the world of phone mast leases as it stands in 2026. While this book provides the essential knowledge and strategies you need to manage your interactions with operators effectively, the industry continues to evolve. The challenges you face today may shift again, and staying informed is critical.

Despite the comprehensive advice offered here, dealing with operators and the intricacies of the Code, the PSTI Act, and the latest case law can still feel overwhelming. The landscape is rich in legal and technical nuance, and the practical impact of a single clause can run into many thousands of pounds over the life of a lease. This is where the expertise of a specialist telecoms surveyor is invaluable. By working with professionals like **The Phone Mast Advice Company**, you can draw on more than thirty years of sector experience to address your specific circumstances and optimise your outcomes.

Armed with the insights from this guide and the support of specialist advisers, you are well placed to navigate the challenges associated with phone mast leases. Whether you are negotiating terms, managing existing agreements, or exploring new opportunities, the knowledge you have gained will serve as a powerful tool. Informed, proactive engagement with operators remains the single most important factor in protecting your interests.

To stay up to date on all things telecoms and phone masts, visit our website. We regularly publish updates and provide ongoing support to help you navigate this ever-changing industry.

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